

The Maharashtra (Bombay Area) Emergency Malaria Regulations, 1973

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State of Maharashtra - Act

The Maharashtra (Bombay Area) Emergency Malaria Regulations, 1973

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The Maharashtra (Bombay Area) Emergency Malaria Regulations, 1973

Rule THE-MAHARASHTRA-BOMBAY-AREA-EMERGENCY-MALARIA-REGULATIONS-1973 of 1973

Published on 2 May 1973

Commenced on 2 May 1973

[This is the version of this document from 2 May 1973.]

[Note: The original publication document is not available and this content could not be verified.]

The Maharashtra (Bombay Area) Emergency Malaria Regulations, 1973

Published vide Notification G. N., U. D. P. H. & H. D., No. PHD. 1672/7659-D, dated 2nd May, 1973 (M. G., Part 4-A, page 324)

[Under the Epidemic Diseases (Bombay Amendment) Act, 1953]

Whereas, the Government of Maharashtra is satisfied that the Bombay Area of the State of Maharashtra is infected by and is threatened with an outbreak of malaria;

And whereas, the Government of Maharashtra thinks that the ordinary provisions of law for the time being in force in the Bombay area are insufficient to prevent the outbreak and spread of the said disease;

Now, therefore, in exercise of the powers conferred by section 2 of the Epidemic Diseases Act, 1897, in its application to

the Bombay area of the State of Maharashtra, the Government of Maharashtra hereby prescribes the following regulations, namely :-

1.

Short title, extent, commencement and duration.

(1)

These regulations may be called the Maharashtra (Bombay Area) Emergency Malaria Regulations, 1973.

(2)

They extend to the districts of Poona, Sholapur, Ahmednagar, Kolhapur, Sangli, Satara, Nasik, Jalgaon, Dhulia, Thana, Kolaba and Ratnagiri and the area of Greater Bombay.

(3)

They shall come into force with effect from the date of this notification.

2.

Definitions.

- In these regulations unless the context otherwise requires,-

(a)

"infected area" means any place or area which is notified by the Collector under regulation 3 to be infected with malaria;

(b)

"Malaria Controlling Officer" means an officer appointed under regulation 4;

(c)

"threatened area" means any place or area which is notified by the Collector, under regulation 3 to be threatened with an infection of malaria.

3.

Notification of place or area as infected or threatened.

- The Collector may by Notification in the Official Gazette declare, -

(a)

any place or area in his district in which a case of malaria has occurred, to be an infected area; and

(b)

any place or area in his district contiguous to any infected area, outside his district or in which, his opinion, there is danger of an outbreak of malaria, to be a threatened area.

4.

Appointment of Malaria Controlling Officer.

- The Collector may, subject to the general or special order of the State Government appoint an officer to be the Malaria Controlling Officer for any infected or threatened area to carry out all or any of the measures prescribed under these regulations.

5.

Publication of list of infected towns and villages and intimation of outbreak of malaria.

(1)

When the Collector has, under regulation 3, declared any place or area to be an infected area, he shall cause to be published, in such infected area as well as in a threatened area declared under the said regulation, a list of infected towns and villages in such infected area and of the Malaria Controlling Officer concerned and of the Passive Surveillance Centres established and of the other Surveillance staff for the treatment of malaria.

(2)

When any infected area of one district is contiguous to another district the Collector of the former district shall forward to the Collector of the latter district for publication whenever and wherever necessary, a list of infected towns and villages in the infected area. The Collector of the contiguous district on receipt of the list of the towns and villages in the infected area shall forward a copy of the list to such local authorities in his district as he may deem fit.

6.

Notification of persons suffering from malaria.

- When malaria breaks out at any place, the Collector shall cause the names and addresses of persons suffering from malaria to be notified to the District Health Officer, Malaria Officer/Assistant Health Officer.

7.

Powers of Malaria Controlling Officer.

- In any town or village which is not a cantonment and which is situated in an infected area or a threatened area, the Malaria Controlling Officer may -

(a)

require every owner or occupier of a building and every medical practitioner forthwith to report every case of malaria which may come to the notice of such owner, occupier or practitioner to the Officer-in-charge of the nearest Passive Surveillance Centre established under the National Malaria Eradication Programme or District Health Officer or Malaria Officer or Assistant Health Officer;

(b)

arrange for the examination of blood of any person suspected to be suffering from malaria and for his treatment;

(c)

carry out or cause to be carried out intensive spraying operations with an effective intensity in the building in which a case or suspected case of malaria occurred and in the surrounding building situate in an area of not less than 400 yards in every direction through any subordinate of District Health Officer, Assistant Health Officer or Malaria Officer;

(d)

give preventive insecticidal indoor residual spraying in any type of premises including animal dwelling, stores, shops, or any other type of refood structure in hamlets, villages, small and big towns or small and big cities etc.;

(e)

carry on mass blood survey and mass drug treatment of all inhabitants and temporary labour and casual visitors in the affected area;

(f)

give such directions to any contractor or the person employing labour at the sites of projects like irrigation projects, roads and building projects and the like, with a view to the prevention and control of the outbreak of malaria at such sites.

8.

Obstruction to performance of duty prohibited.

- Every person shall duly comply with an order or requisition issued under these regulations and no person shall obstruct the performance of any duty imposed by these regulations.

9.

Punishment for breach of regulations, etc.

- Every person who disobeys or commits a breach of any of these regulations or orders, or requisitions issued thereunder or obstructs any measures which have been taken by Government, or which the Malaria Controlling Officer has been required or empowered to take under these regulations, shall be liable to be prosecuted under section 188 of the Indian Penal Code.

10.

Police Officers to assist the Malaria Controlling Officers.

- It shall be the duty of Police Officers to assist the Malaria Controlling Officers in carrying out the provisions of these regulations.

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